

CALIMESA FIRE DEPARTMENT
GUIDELINE MANUAL
VOLUME 3

Policy: 305.01 Return to Work from an Injury or Illness

11/2023

Page 1 of 2

PURPOSE

The purpose of this policy is to ensure the well-being of staff members returning to work from an injury or illness.

POLICY

1. Any individual returning to work from a serious injury or illness, extended absence due to medical reasons, or from any other health-related circumstance, must contact the Fire Chief or Deputy Chief. The fire department and the city will require a medical release to return to work from the employee's healthcare provider or workers' compensation physician. The final return to active duty decision will then be determined by the fire department physician.
2. For absences due to minor injuries or illnesses, the fire department may require a medical release to return to work from the individual's physician. If, in the discretion of the Fire Chief or Deputy Chief, the medical release does not provide sufficient information, the fire department physician will contact the employee's healthcare provider in order to receive clarification. The medical release to return to work must be received by the Fire Chief or Deputy Chief before the individual will be permitted to return to regular duty. A fitness assessment performed by the fire department physician may be required. When the medical release has been verified as acceptable, the individual will be released to duty as dictated by the fire department physician.
3. In the event the fire department physician determines that a fit for duty evaluation is required of any individual, they will be given written notice of that requirement. The individual has the duty to cooperate in such evaluation, including, but not limited to, signing all necessary medical information release forms, allowing their relevant medical records to be transferred and reviewed by the fire department physician, and allowing the fire department physician to report findings and opinions regarding the individual's fit for duty status and the individual must respond to the fire department physician's reasonable inquiries in that regard. Failure to cooperate in the return to work evaluation may result in discipline.
4. If the individual's healthcare provider and the fire department physician disagree upon their assessment of the employee's ability to return to duty, the individual's healthcare provider and the fire department physician will select a third, appropriately qualified physician to perform a final examination and render a medical decision to settle the dispute. Upon the scheduling of the fit for duty evaluation, all relevant information relating to the individual, including the job description, job analysis and any other job-related information, city employment information relative to the need for the evaluation, and any relevant city medical records, along with the signed medical records release form will be forwarded to the fit for duty medical expert for review. In addition, the fit for duty medical expert will be provided a fit for duty questionnaire

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Page 2 of 2

outlining the requested information. The designated medical expert shall perform an individualized evaluation of the individual's ability to safely perform the essential functions of the job. The city will pay for the third party fit for duty evaluation process. The city reserves the right to rely on the opinions expressed by the designated medical expert.

5. Upon receipt of the completed fit for duty evaluation, the fire department and the city will review and evaluate the individual's abilities to safely perform the essential functions of their job. In the event it is determined that the individual does not have the ability to perform each of the essential functions of their job or they pose a risk of harm to self or others in the performance of such functions, the fire department will determine whether or not a reasonable accommodation exists that will remove the barrier to continued employment, and eliminate or minimize the potential risk of harm to the individual or others.

6. In cases where the individual is released to light or modified duty, they will follow the guidelines provided by the fire department and fire department physician.

7. Fitness Assessment: Uniformed Personnel who are off duty due to personal illness or injury may be subject to a fitness assessment once they have been released to full duty, but prior to assignment to active duty. Individuals must contact the Fire Chief or Deputy Chief to establish whether a fitness for duty assessment will be required. Fitness for duty assessments will be coordinated by the fire department physician. These assessments will be based on Individual Performance Standards (IPS) and the individual's job description and will need to be completed prior to return to active duty.

8. All actions carried out under this Policy shall comply with the privacy and non-discrimination standards established by the Americans with Disabilities Act, Fair Employment and Housing Act, and medical privacy and confidentiality laws.

9. Also see Policy 301.07